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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 06.07.2026

CORAM

THE HON'BLE MR.JUSTICE R.VIJAYAKUMAR

Crl.OP.(MD)No.13330 of 2026

V.Balaji

... Petitioner

Vs

1. The Superintendent of Police,
Madurai Rural, Madurai District.

2. The Deputy Superintendent Of Police,
Samayanallur, Madurai, Madurai District.

3. The Inspector of Police,
Alanganallur, Madurai District.

4. V. Rajagopal

... Respondents

PRAYER: Criminal Original Petition is filed under Section 528 of BNSS Act, to direct the respondent 2 and 3 herein not to harass the petitioner and his family members by considering the pendency of the civil suit in O.S.No. 247/2026 on the file of the VI Additional District Court, Madurai.

For Petitioner : Mr.M.Thirunavukkarasu

For Respondents : Mr.B.Arun
Government Advocate (Crl.Side)
for R1 to R3

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ORDER

The present petition has been filed to direct the second and third respondents police not to interfere in the civil dispute and harass the petitioner under the guise of enquiry.

2.It could be seen from the records that the 4th respondent herein is the brother of the petitioner and the petitioner has already filed a suit in OS No. 247 of 2026 before the VI Additional District Court, Madurai seeking the reliefs of declaration and partition and the same is pending. The 4th respondent has lodged a complaint as against the petitioner herein and an FIR has been registered as against the petitioner on 01.06.2026 in Cr.No.251 of 2026 on the file of third respondent police and in which, the petitioner is alleged to have committed offence under Sections 296(b), 351(2) of BNS.

3.The learned counsel appearing for the petitioner submitted that the third respondent is insisting the petitioner to withdraw the civil suit.

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4.In such view of the matter, there shall be a direction to the respondents police not to summon the petitioner, except by issuance of notice under Section 35 of BNSS (Section 41A of Cr.P.C).

5.With the aforesaid observations, this Criminal Original Petition stands disposed of.

06.07.2026

NCC : Yes/No
Index : Yes/No
Internet: Yes/No
PNM

To
1. The Superintendent of Police,
Madurai Rural, Madurai District.

2. The Deputy Superintendent Of Police,
Samayanallur, Madurai, Madurai District.

3. The Inspector of Police,
Alanganallur, Madurai District.

4.The Additional Public Prosecutor,
Madurai Bench of Madras High Court, Madurai.

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R.VIJAYAKUMAR, J.

PNM

ORDER MADE IN
Crl.OP.(MD)No.13330 of 2026

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